



File No.: EXP202401977

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed on June 28, 2024, by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 7, 2024, and based on the following

FACTS

FIRST: On June 7, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202401977, in which it was agreed to uphold the claim for the exercise of rights made by (the appellant previously claimant) against ENAIRE (hereinafter the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on June 10, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which, in summary, it states that the respondent in its response dated June 24, 2024, denied access to the requested reports based on the regulations of the administrative procedure and the bases of the calls, arguing that it had already exhausted the possibilities of defense within the framework of the selection processes and that, therefore, the delivery of the requested reports was not appropriate, and concludes by requesting the delivery of the requested behavioral evaluation reports.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

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In relation to the statements made by the appellant, it should be noted that this Agency upheld the claim previously filed by the claimant now appellant because it considered that the right of access had not been fully addressed.

III

Conclusion

Upon examining the recourse for reconsideration presented by the appellant, we find that there is no discrepancy between the favorable resolution that this Agency issued regarding the claim and the arguments of the recourse for reconsideration now presented. The respondent still has not fully addressed the right as stated in the resolution.

However, the appellant now refers to a response where the requested information was denied, a response that this Agency cannot analyze as it has not received a copy of the submission that the respondent made to the claimant after the favorable resolution.

Therefore, on one hand, this Agency will send a reminder of compliance with the resolution to the respondent, and on the other hand, this recourse is dismissed for the reasons explained in the previous paragraph; there is no discrepancy of criteria between the parties.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present recourse has not been issued.

According to the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the recourse for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on June 7, 2024, in file EXP202401977.

SECOND: TO NOTIFY this resolution to A.A.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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